

CITATION: The Corporation of the City of Brantford and
Danti Holdings Inc. 2018 ONSC 7816
COURT FILE NO. CV-15-00000413-00SR
DATE: January 4, 2018

SUPERIOR COURT OF JUSTICE

B E T W E E N :

ALAN SPENCE

Plaintiff

- and -

THE CORPORATION OF THE CITY OF BRANTFORD
AND DANTI HOLDINGS INC.

Defendants

R E A S O N S F O R J U D G M E N T
BEFORE THE HONOURABLE JUSTICE C. BRAID
on January 4, 2018, BRANTFORD, Ontario

APPEARANCES:

G. Smits	Counsel for Plaintiff
D. Phillips-Brown	Counsel for City of Brantford
S. Coons	Counsel for Danti Holdings

(i)
Table of Contents

SUPERIOR COURT OF JUSTICE
T A B L E O F C O N T E N T S
W I T N E S S E S

WITNESSES

	Examination <u>in-Chief</u>	Cross- <u>Examination</u>	Re- <u>Examination</u>
--	--------------------------------	------------------------------	---------------------------

E X H I B I T S

<u>EXHIBIT NUMBER</u>	<u>ENTERED ON PAGE</u>
-----------------------	------------------------

Legend

[sic] - Indicates preceding word has been reproduced verbatim and is not a transcription error

(ph) - Indicates preceding word has been spelled phonetically.

Transcript Ordered:	February 1, 2018
Transcript Completed:	February 6, 2018
Ordering Party Notified:	February 6, 2018

1.
Reasons for Judgment
Braid, J.

THURSDAY, JANUARY 4, 2018

R E A S O N S F O R J U D G M E N T

5 BRAID, J. (Orally):

I. Overview

10 In 2013, Alan Spence slipped and fell on a
municipal sidewalk in front of a residential
apartment building. He has brought an action for
personal injury damages resulting from the slip
and fall. He sued the City of Brantford. He
also sued Danti Holdings Inc. who is the owner of
the apartment building. In these reasons, I
shall refer to the Defendants as Brantford and
15 Danti.

More than a year after the incident, Spence
notified Brantford of the slip and fall.
Brantford moves for summary judgment because
20 Spence failed to provide written notice of his
claim within 10 days of the incident.

25 Danti also moves for summary judgment. The
municipal sidewalk is adjacent to Danti's
property. Danti argues that Spence has not
established that Danti was an occupier of the
sidewalk where the slip and fall occurred.
The following issues arise on this motion:

30 A. Summary Judgment

B. Is the claim against Brantford statute barred
because the Plaintiff failed to give 10 days
written notice?

2.
Reasons for Judgment
Braid, J.

C. Can the Plaintiff establish occupier liability against Danti?

II. Facts

On December 31, 2013, Mr. Spence slipped and fell on a sidewalk in front of his apartment building at 73 North Park Street, Brantford. He states that a patch of ice on the sidewalk caused him to fall.

Mr. Spence attended at the emergency room approximately five days after the fall.

Mr. Spence believes that the male superintendent saw him fall and that the female superintendent asked him if he was okay shortly after. The female superintendent denies knowing that Mr. Spence fell and denies asking him if he was okay.

One year and 16 days after the fall, Mr. Spence faxed notice to the City of Brantford advising that he intended to commence a claim as a result of the slip and fall. This was the first time that Brantford had heard of it.

Upon receiving the notice, Brantford referred the matter to an independent adjuster to investigate and handle Mr. Spence's claim.

The adjuster was unable to investigate the state of the sidewalk in and around the time of the fall because more than a year had passed. Any

3.
Reasons for Judgment
Braid, J.

ice formation that had existed at the time of the fall had melted before Brantford was notified of the claim. The adjuster could not locate any witnesses to the incident or to the sidewalk conditions at the time of the incident. He could not retrieve any video footage from transit vehicles passing the location on the date of the incident because the video footage is on a ten-day loop. The adjuster spoke to the former superintendent of the building. The superintendent no longer remembered if patches of ice were present on the date alleged because of the passage of time.

The statement of claim alleges that the patch of ice was "large, spanning the width of the sidewalk and the length of several concrete blocks". The claim states that Brantford was negligent in failing to ensure that the sidewalk was free from ice. Other than an affidavit from Mr. Spence, the Plaintiff has not provided any evidence or other witnesses to corroborate his evidence regarding the condition of the sidewalk on December 31, 2013.

From the time of the fall until notice was given to Brantford, Mr. Spence had ongoing pain and discomfort. He was limping throughout that time.

In his affidavit, the Plaintiff states that his "failure to provide notice in a timely fashion was due entirely to his lack of knowledge that

notice should be provided". He has not provided any other excuse for failing to give notice within 10 days of the fall.

Mr. Spence acknowledges that he is an experienced litigant. He commenced a lawsuit against Loblaw's in 2010. He had counsel on that case and had access to that lawyer at the time of the slip and fall in this case. He has also been the Plaintiff in three other civil actions. Further, he has been involved in a human rights tribunal case; landlord and tenant proceedings; and historic Workplace Safety and Insurance Board proceedings.

Two photographs of the sidewalk have been filed in these proceedings. There are four steps in front of the apartment building leading down to an area of the sidewalk which leads to the municipal sidewalk. Although it is not clear from the photo, the stairs suggest that there is a slight rise in the property in front of the apartment building. The sidewalk itself is very close to the road and is slightly higher than the road. There is a storm drain at the road level immediately in front of the sidewalk area where the Plaintiff says that he fell.

III. Analysis

A. Summary judgment

The court shall only grant summary judgment if it is satisfied that there is no genuine issue

requiring a trial. Pursuant to Rules 20.04(2) (a) and 2.1 of the *Rules of Civil Procedure*, the court shall consider the evidence submitted by the parties and may exercise any of the following powers for the purpose of determining whether there is a genuine issue requiring a trial, unless it is in the interests of justice for such powers to be exercised only at trial:

1. Weighing the evidence.
2. Evaluating the credibility of a deponent.
3. Drawing any reasonable inferences from the evidence.

In *Hryniak v. Mauldin*, 2014 SCC 7, the Supreme Court of Canada clarified the test to apply on a summary judgment motion. Under this test there is no genuine issue requiring a trial if the evidence permits the court to make a fair and just determination on the merits. This will be the case when a motion for summary judgment, (1) allows the judge to make the necessary findings of fact, (2) allows the judge to apply the law to the facts and, (3) is a proportionate more expeditious and less expensive means to achieve a just result.

What is fair and just depends on the nature of the issues and the nature and strength of the evidence. There is an obligation on each party to put its best foot forward. The responding party must present its best case or risk losing.

(See *Canada Mortgage and Housing Corp. v. Greenspoon*, 2015 ONSC 6882.)

In this case, the Plaintiff argues that there are a number of material facts in dispute and that it is not an appropriate case for summary judgment. I shall address the issues further in the paragraphs below.

(b) Is the claim against Brantford statute barred because the Plaintiff failed to give 10 days written notice?

The Plaintiff admits that he failed to provide Brantford with notice of his slip and fall within the 10-day notice period as required by the *Municipal Act 2001*. The parties agree that notice was given more than one year after the incident.

Section 44(10) of the *Municipal Act* states that no action shall be brought for recovery of damages against a municipality in respect of a sidewalk unless, within 10 days after the occurrence of an injury, written notice is served upon or sent to the clerk of the municipality. The notice period runs from the date of the injury. The common law discoverability rules and the discovery provisions under Section 5 of the *Limitations Act* do not apply to suspend the commencement of the notice period. (See

Municipal Act, 2001 and Bourassa v. Temiskaming Shores, 2016 ONSC 1211.)

Section 44(12) of the *Municipal Act, 2001* states that an action is not statute barred where there is a reasonable excuse for failing to provide notice, and the municipality is not prejudiced in its defence. The purpose of Section 44(10) of the *Municipal Act* is to allow a municipal corporation to conduct timely investigation of the place and circumstances under which the incident occurred. Failure to abide by the 10-day notice period is presumed to prejudice the municipality and must be rebutted by evidence from the Plaintiff. This is particularly so when the failure to provide notice prevents the municipality from having photographs or measurements of the road conditions at the time of the accident. The loss of opportunity to interview witnesses while memories are fresh is also problematic. (See *Argue v. Tay (Township)* 2012 ONSC 4622; appeal dismissed 2013 ONCA 247.)

The proper approach is to start the notice period on the date of the injury; to apply the principle of discovery to the issue of reasonable excuse; and to consider any prejudice arising after the 10 day expires. (See *Bourassa v. Temiskaming Shores*.)

(1) Does the Plaintiff have a reasonable excuse?

In determining whether the Plaintiff has a reasonable excuse under Section 44(12), the

question the court must ask is whether it is reasonable, in all of the circumstances, for the Plaintiff not to provide notice within the required time period. A lack of awareness of the notice requirement standing alone does not constitute a reasonable excuse. (See *Crinson v. Toronto* 2010 ONCA 44 and *Azzeh v. Legendre* 2017 ONCA 385.) The reasonable excuse provided by Section 44(12) would be rendered meaningless if a Plaintiff only needed to state he was unaware of the 10 day notice requirement. Most Plaintiffs would not be aware of it until a lawyer told them; and failure to comply until a lawyer was retained would always be excusable. This is not the intent of the legislation. (See *Argue v. Tay (Township)*.)

In the present case, the Plaintiff was aware of his injury from the time of the slip and fall. He was physically and mentally capable of investigating his legal rights and taking steps to protect them following the accident. The Plaintiff has failed to provide any reasonable excuse for his failure to provide Brantford with notice of the slip and fall within the required 10-day period.

(2) Was there prejudice to Brantford?

The test under 44(12) requires the Plaintiff to establish both a reasonable excuse and lack of prejudice to the Defendant. I have found that the Plaintiff did not have a reasonable excuse.

I will also consider the issue of whether there was prejudice.

A significant period of time had elapsed between the incident and the time of the notice of the claim. The opportunity for Brantford to investigate the incident through examining the sidewalk conditions, interviewing witnesses and making inquiries was significantly prejudiced.

It is notable that, with changing weather conditions and salting that may have taken place, an examination of the sidewalk may not have been fruitful even if it had occurred within a few days after the slip and fall. However, the inability to collect potential video footage from transit vehicles, and the inability to interview witnesses within a short time after the incident caused prejudice to Brantford.

The Plaintiff has not adduced any other evidence to refute that Brantford has suffered prejudice. The Plaintiff has not provided any photos of the sidewalk at the time of the incident, nor has he provided any witnesses to corroborate his slip and fall, or to corroborate the condition of the sidewalk on the date in question.

The Plaintiff has failed to establish any reasonable excuse for his delay in providing notice. In addition, Brantford has been prejudiced in its defence by the late notice

provided by the Plaintiff. The claim against Brantford is therefore statute barred.

With respect to the claim against Brantford, there is no genuine issue requiring a trial.

C. Has the Plaintiff established that Danti owed them a duty of care?

The statement of claim pleads that the slip and fall and resulting injuries were caused as a result of a negligence of the Defendants. It further pleads that Danti was aware or should have been aware that, due to the slope of land in the area of the sidewalk in question where the Plaintiff fell, that the sidewalk would become susceptible to the formation of ice due to the run off of water from the adjoining areas.

The slip and fall occurred on a municipal sidewalk that is adjacent to property owned by Danti. The snow and ice accumulating on public sidewalks are generally the legal responsibility of the municipality, not the adjacent property owner. (See *Bongiardina v. York (Regional Municipality)* [2000] O.J. No. 2751 (Ontario Court of Appeal).)

There are two exceptions to the rule that adjacent property owners do not have a duty of care toward the users of adjacent municipal sidewalks:

1. if an owner assumes control of the property;

2. the duty of care on the owner extends to ensuring that the conditions or activities on his or her property do not flow off the property and cause injury to persons nearby. (See *Bongiardina*.)

In the case before the court, the Plaintiff is not alleging that Danti assumed control of the sidewalk. However, the Plaintiff argues that the second exception applies. The Plaintiff states that Danti's property sloped towards the sidewalk and that Danti allowed the water from melting snow and ice on its property to run across the sidewalk and accumulate on the sidewalk.

I agree with and adopt the reasons of Justice Pitt in the case of *Simmons v. Etobicoke*, [2002] O.J. No. 306.

In this case, as in the *Simmons* case, the issue can be stated as follows: Does the allegation that the Defendant's property sloped with the inference that more snow would run off from it than from flat surfaces into the sidewalk raise a reasonable possibility of the applicability of the duty of care of the owner to ensure that conditions or activities on his or her property do not flow off the property and cause injury to persons nearby?

There is an emphasis on the need for proving that the occupier did or failed to do something on

their property that created or contributed to a hazard on the adjacent sidewalk. This can be found in the case of *Bongiardina v. York*.

I have also considered the reasons of Justice Epstein in *Avendano v. Bosnian Islamic Centre* [2000] O.J. No. 2401 (SCJ). In that case, the court held that a defendant property owner may be responsible in nuisance for injuries caused by water that flows from its property and accumulates on a sidewalk and freezes.

Having considered both the *Simmons* case and the *Avendano* case, it is important to consider whether Danti did or failed to do something on the property that created or contributed to a hazard on the adjacent sidewalk. In addition, in the *Avendano* case, the court makes reference to water that flows from its property and accumulates on a sidewalk. It is important to consider whether or not there is evidence that this occurred in this case.

The Plaintiff states that, two days before the incident, the temperature was above zero degrees Celsius. The day before and the day of the incident temperatures were well below zero. There was precipitation at various points throughout these three days, including continuous snow flurries during the 12 hours prior to the fall. The Plaintiff suspects that the patch of ice was formed two days before the fall when the

temperature was above zero. The Plaintiff also states that there is a small hill between the apartment building and the municipal sidewalk. When snow is present and it melts, the Plaintiff says that it tends to flow down the hill and pools on the municipal sidewalk. He believes that the snow landed on the property owned by Danti, melted, and then seeped onto the sidewalk creating icy conditions. Under cross-examination, the Plaintiff acknowledged that these beliefs about the hill and the movement of water were not based on any observations. Instead, he made assumptions based on weather summaries. He has not taken any measurements of the grade or slope of the hill on the Danti property.

In response to Danti's motion for summary judgment, the Plaintiff has not provided any evidence from an engineer or weather expert. The Plaintiff has made general assumptions that he has no authority or expertise to testify about. In particular, the Plaintiff has commented on weather patterns, the sloping of property, freeze cycles and the pooling of water on a sidewalk.

The Plaintiff suggests that, if snow melts on the Danti property, the water must flow downhill towards the sidewalk. Even if the Plaintiff could prove that the snow melted on the Danti property and flowed onto the sidewalk, there is absolutely no evidence that the water would pool

and then freeze on the sidewalk. Further, there is no evidence that the ice patch was caused by melting snow from the adjacent property, rather than from snow or rain that fell onto the sidewalk directly.

In his affidavit, the owner of the apartment building states the following:

1. There have never been any issues with snow or ice that melts on the property and accumulates on the sidewalk.

2. There is no valley or dip in the grade of the sidewalk that would allow for the accumulation of any melt water on the sidewalk in front of the apartment building.

3. The municipal sidewalk is actually slightly higher than the paved boulevard which leads to the storm drain and then to the street.

The owner was not cross-examined on his affidavit.

In her affidavit, a female superintendent of the apartment building stated the following:

1. The superintendents would perform daily inspections of the sidewalk in front of the apartment building.

2. They were careful to apply salt when there were ice patches.

3. There were many seniors who lived at the apartment building. Therefore, the superintendents took extra care to be diligent in their snow removal and salting. The superintendent was not cross-examined on her affidavit.

The Plaintiff states that the superintendent knew about his fall and inquired about whether he was okay after the fall. The superintendent states that she was not aware that the Plaintiff fell on the sidewalk and did not inquire whether he was okay. The Plaintiff argues that this is a genuine issue of credibility requiring a trial.

I disagree. Even if the Plaintiff's evidence were accepted on this point, it does not assist in determining whether the Plaintiff has proven that Danti owed him a duty of care or that conditions or activities on Danti property flowed off the property and caused injury to him.

In responding to Danti's motion for summary judgment, the Plaintiff is required to put his best foot forward. The evidence adduced by the Plaintiff falls far short of establishing any liability with respect to Danti.

The Plaintiff has made broad statements based on assumptions regarding weather patterns, the flow melting snow, and the subsequent accumulation and freezing on the sidewalk in question. He has made no personal observations, nor has he provided any witnesses to support those assumptions. He has not provided any expert evidence from an engineer or other qualified person to support his theories. There is no expert evidence that the layout of the Danti property would result in the accumulation of water and/or ice on the sidewalk.

To be clear, there is no evidence to suggest that the ice that accumulated on the sidewalk came from the flow of melted snow or ice from the Danti property which was adjacent to the sidewalk. There is no evidence that Danti did something or failed to do something on its property to cause an accumulation of ice on the sidewalk.

With respect to the claim against Danti, there is no genuine issue requiring a trial.

IV. Conclusion

For all of these reasons the motions for summary judgment are granted. The actions against the Corporation of the City of Brantford and Danti Holdings Inc. are dismissed. I will now hear submissions with respect to costs.

...WHEREUPON THESE MATTERS WERE CONCLUDED

17.
Certification

FORM 2

Certificate of Transcript (Subsection 5(2))

Evidence Act

I, Susan Powell, certify that this document is a true and accurate transcription of the recording of Spence v. City of Brantford *et al*, in the Superior Court of Justice held at 70 Wellington Street, Brantford, Ontario, taken from Recording No. 0212_201_20180104_094110__10_BRAIDC, which has been certified in Form 1.

September 5, 2024

Date



(Signature of authorized persons)

Province of Signing: Ontario, Canada

Susan C. Powell
Authorized Court Transcriptionist for Ontario
ID - 7479655017
519-752-2276
susancolleenpowell@gmail.com

A certificate in Form 2 is admissible in evidence and is proof, in the absence of evidence to the contrary, that the transcript is a transcript of the certified recording of evidence and proceedings in the proceeding that is identified in the certificate.